

NOTICE OF CHANGE IN PLACE OF RESIDENCE: PERSON WITH CONTACT

Two (2) versions of this form are available: a print friendly version in PDF format and a web friendly version.

1. **Print friendly in PDF format:** You can use the PDF version if you want to be able to save your progress on your own computer as you go.
Once you save it on your computer, you can go back to the document as many times as you want to make changes. You can print it later when you are ready.
You can also print a blank form and fill it in by hand.
2. **Web friendly version:** You can use this version if you want to complete the form on the web page and print it out right away. This web page may also be used by those requiring support from a screen reader.

Important notes:

- **You cannot save information in this web page and come back to it later.** The Department of Justice does not collect or keep any of this information.
- **If you close your browser tab or your browser before printing it, your information will be lost.**

Instructions for using this form

The *Divorce Act* has rules about giving notice about plans to move. If you have a *Divorce Act* order giving you contact with a child under a contact order, you will have to give notice.

If you are planning a move that is likely to have a significant impact on your relationship with the child, you can use this form to notify people who are entitled to notice about the move.

There are some situations in which giving notice might not be appropriate or safe, like when there is a risk of family violence. A court can make an order that says that you don't have to give notice or changes what you have to do.

For more information about contact orders under the *Divorce Act*, please consult the Fact sheet: [Parenting arrangements after separation or divorce](#).

INSTRUCTIONS:

- You must give notice to anyone who has a *Divorce Act* order giving them parenting responsibilities for the child (which means that they have a court order giving them custody, access, parenting time or decision-making).
- You must provide notice to them **at least 60 days** before the date you expect to move.
- You can use the same form for more than one child.
- It is a good idea to attach a copy of your most recent contact order to this notice. This will help to make sure everyone has the same information about current contact arrangements. If the most recent contact order does not reflect the current contact schedule, you may also want to attach a description of the current contact schedule.
- While there are different ways you can provide your notice, including by email, by mail or courier, or in person, it is important that you ensure that everyone who is entitled to notice actually receives the notice. You may want to ask people to send you a confirmation in writing that they received the notice, and you should keep a copy of that confirmation.

Notes about certain sections of the form:

Part B – Children with contact

- Provide the name(s) of any child(ren) with whom you have contact under a contact order.
- Provide as much detail about the new address and contact information as you can at this time.

Part C – Names of the people who are receiving this Notice of Change in Place of Residence

- You must provide this notice to everyone who has parenting responsibilities for the child(ren) under a *Divorce Act* order (custody, access, parenting time or decision-making). You can use the same form for everyone or separate forms for each person. However, you need to include the names of all people who will be receiving the notice on each form.

Part D – Proposal to change contact arrangements

- Provide a proposal regarding how contact could be exercised after the move takes place. Some of the issues you may want to include are:
 - Will the current contact schedule need to change after the move?
 - If so, what is your proposal for a new contact schedule? How will this fit into the children's schedule?
 - Will the child(ren) need to travel to spend time with you? If so, how will they travel? What would the estimated travel costs be? Who will cover the travel costs? Will the child(ren) need to be accompanied? Who will accompany the child(ren) and who will cover those costs? Who will make the travel arrangements?
 - Are there other ways contact could happen after the move, for example by phone or electronic communication?

Part E – Attachments

- Indicate whether you have attached the following to your notice. These attachments are optional.
 - A copy of the contact order
 - A description of the current contact schedule (on a separate page)
 - Other

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Part A – Information about the person giving notice
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Name			
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Current Address			
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Current Phone Number		Current Email Address	
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Part B – Children with contact

Expected date of change in place of residence: _____
Date (DD/MM/YYYY)

Address of new place of residence:

New contact information:

Phone
number:

Email
address:

Part C – Names of the people who are receiving this Notice of Change in Place of Residence

Part D – Proposal to change contact arrangements

Part E – Attachments (optional)

- ☐ A copy of the contact order
- ☐ A description of the current contact schedule (on a separate page)
- ☐ Other

Name of person giving notice

Date (DD/MM/YYYY)